

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOHN FUENTES,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. "JOHN"
GUZMAN and P.O. "JANE" RODRIGUEZ,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

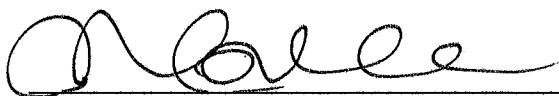
Plaintiff designates New York
County as the place of trial.

The basis of venue is:
Place of occurrence

To the above named Defendant

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Rockville Centre, New York
July 7, 2014



MARC J. MUSMAN, ESQ.
MARK E. WEINBERGER, P. C.
Attorneys for Plaintiffs
50 Merrick Road
Rockville Centre, New York 11570
(516) 829-7270

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. "JOHN" GUZMAN
C/O NEW YORK CITY POLICE DEP'T
1 Police Plaza
New York, New York 10038

NEW YORK CITY POLICE DEP'T
1 Police Plaza
New York, New York 10038

P.O. "JANE" RODRIGUEZ
C/O NEW YORK CITY POLICE DEP'T
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOHN FUENTES,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. "JOHN" GUZMAN and
P.O. "JANE" RODRIGUEZ,

Defendants.
-----X

Plaintiff, as and for his Verified Complaint by his attorneys Mark E. Weinberger, P.C., respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter the occurrence complained of herein took place in the County of New York, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a domestic municipal corporation duly licensed and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT was and still is a department of the City of New York.
4. On the 31st day of October, 2013 and within ninety (90) days after the claim herein sued upon accrued, plaintiffs filed with defendants a written Notice of Claim setting forth the time, place, nature and manner in which the claim arose.

5. More than thirty (30) days have elapsed from the date that said Notice of Claim was filed and defendants have neglected and refused to make payment or adjust said claim.

6. Plaintiff appeared for a hearing on December 10, 2013 pursuant to General Municipal Law, Section 50-h.

7. This action was commenced within one (1) year from the date of the cause of action accrued hereafter.

8. At all times hereinafter mentioned, defendant, "JOHN" GUZMAN, was and still is a police officer employed by defendant, THE CITY OF NEW YORK.

9. At all times hereinafter mentioned, defendant, "JOHN" GUZMAN was and still is a police officer employed by defendant, NEW YORK CITY POLICE DEPARTMENT.

10. On the 20th day of September 2013, defendant, "JOHN" GUZMAN, was on duty and acting within the scope of his authority as police officer for the defendant, THE CITY OF NEW YORK.

11. On the 20th day of September, 2013 at approximately 4:05 P.M., defendant, "JOHN" GUZMAN, was on duty and acting within the scope of his authority as a police officer for the defendant, NEW YORK CITY POLICE DEPARTMENT.

12. At all times hereinafter mentioned, defendant, "JANE" RODRIGUEZ, was and still is a police officer employed by defendant, THE CITY OF NEW YORK.

13. At all times hereinafter mentioned, defendant, "JANE" RODRIGUEZ, was and still is a police officer employed by defendant, NEW YORK CITY POLICE DEPARTMENT.

14. On the 20th day of September, 2013, at approximately 4:05 P.M., defendant, "JANE" RODRIGUEZ, was on duty and acting within the scope of her authority as a police officer for the defendant, CITY OF NEW YORK.

15. On the 20th day of September, 2013, at approximately 4:05 P.M., defendant, "JANE" RODRIGUEZ, was on duty and acting within the scope of her authority as a police officer for the defendant, NEW YORK CITY POLICE DEPARTMENT.

16. On the 20th day of September, 2013, at approximately 4:05 P.M., on the downtown platform of the # 6 IRT Line Train (28th Street Station), County, City and State of New York, the defendant, "JOHN" GUZMAN, while in the employ of and performing work for the defendants, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, and within the scope of his employment, willfully and wrongfully assaulted the plaintiff and maliciously, wantonly and without just cause or provocation, used excessive force when attempting to put handcuffs on the plaintiff, causing him to sustain serious permanent injuries.

17. On the 20th day of September, 2013, at approximately 4:05 P.M., on the downtown platform of the # 6 IRT Line Train (28th Street Station), County, City and State of New York, the defendant, "JANE" RODRIGUEZ, while in the employ of and performing work for the defendants, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, and within the scope of his employment, willfully and wrongfully assaulted the plaintiff and maliciously, wantonly and without just cause or provocation, used excessive force when attempting to put handcuffs on the plaintiff, causing him to sustain serious permanent injuries.

18. That defendants' actions were intentional, unwarranted and in violation of the law.

19. That by reason of the conduct of the defendants, their agents, servants and/or employees as aforesaid, the plaintiff became sick, sore and disabled; sustained severe injuries to various parts of this body and psyche; that he suffered and will continue to suffer great pain and anguish in body and mind; that he received necessary hospital attention and medical care by reason of the injuries sustained and for which expenses have, are and will continue to be incurred; that he may in the future require further medical care and attention; that he has been unable to return to his usual duties as he had theretofore done; and upon information and belief, his injuries are permanent, protracted and disabling in nature.

20. That the incident was caused solely and wholly as a result of the negligence of the defendants, their agents, servants and/or employees and each of them, without any negligence on the part of the plaintiffs contributing thereto.

21. That due to the carelessness, recklessness and negligent acts on the part of the defendants, their agents, servants, and/or employees, plaintiff, JOHN FUENTES, was caused to sustain serious personal injuries and be deprived of liberty.

22. That the actions of defendants "JOHN" GUZMAN & "JANE" RODRIQUEZ, deprived plaintiff of plaintiff's rights under the United States Constitution, including but not limited to freedom from the use of excessive and unreasonable force, freedom from a deprivation of liberty without due process of law and freedom from unjust imprisonment.

23. That defendants, "JOHN" GUZMAN & "JANE" RODRIQUEZ, subjected plaintiff to such deprivations by either malice or a reckless disregard of plaintiff's rights.

24. That the direct and proximate result of the acts of defendants, "JOHN" GUZMAN & "JANE" RODRIQUEZ, is that plaintiff has suffered severe and permanent injuries, was forced to endure great pain and mental suffering, was forced to incur medical and legal expenses and was deprived of liberty.

25. That the defendants, their agents, servants and/or employees were negligent, careless and reckless in arresting the plaintiff; in wrongfully arresting the plaintiff; in applying deadly and/or excessive force in the course of the arrest of the plaintiff; in causing said plaintiff's arm and hand to be injured; in pulling his arm by his thumb in an attempt to put handcuffs on the plaintiff; in failing and omitting to take appropriate precautions for the protection of the plaintiff when he was taken into custody; in failing and omitting to adhere to the modes, practices, customs and procedures prescribed for police officers undertaking to make an arrest and handcuffing someone in the course of their duties; in deviating from the rules and regulations made and provided in effecting an arrest and handcuffing someone in the course of their duties; in the inadequately educating and training their employees, including the defendants, "JOHN" GUZMAN and "JANE" RODRIGUEZ; in hiring and retaining incompetent and unfit police officers and permitting them to remain in the employ of The City of New York and/or the New York City Police Department; in hiring, and retaining the police officer(s) who assaulted and used excessive force on the plaintiff as recited above, when defendant knew, or should have known, prior to the occurrence involved herein that said police officer(s) were of a mean and vicious temperament; in failing to oversee, supervise, and monitor his conduct and, in particular, his conduct and actions with respect to the plaintiff herein; in failing to properly train and discipline them; in causing,

permitting and allowing said police officer(s) to illegally and wrongfully use excessive force, arrest, falsely imprison, maliciously prosecute, assault, batter, wrongfully detain plaintiff. In failing to discharge those security officers who were unfit, unsuitable, not properly trained and not properly instructed and those who constituted a potential menace to the general public at large; those with physical and/or psychological traits, rendering them unsuitable, unstable and incompetent or contra-indicated for such employment; in amongst other things defendants were negligent in forcibly arresting the plaintiff with the use of excessive force; in failing to properly train their employees or engaging inexperience or incapable employees in unlawfully incarcerating and/or falsely imprisoning plaintiff; in victimizing plaintiff; in deviating from the rules and regulations made and provided in effecting an arrest; in the inadequately educating, and training; in hiring and retaining incompetent and unfit police officers and permitting them to remain in the employ of The City of New York Police Department; in causing, permitting and allowing said police officer to use excessive force in attempting to arrest the plaintiff; in failing to discharge those officers who were unfit, unsuitable, not properly trained and not properly instructed; those who constituted a potential menace to the general public at large; those with physical and/or psychological traits, rendering them unsuitable, unstable and incompetent or contra-indicated for such employment; in amongst other things defendants were negligent in using excessive force on the plaintiff when attempting to place him in handcuffs; in violating 42 USC §1983 et seq.; in violating due process and equal protection; in failing to afford their agents, servants and/or employees the proper and special training necessary for the duties they could foreseeable be expected to perform in the course of their employment; in engaging in a

course of consistently threatening, harassing, detaining and arresting persons while using excessive force, without cause or reason therefor; in failing to properly perform the duties they were required to perform in the course of their employment; in knowingly and willfully engaging in a course of consistently arresting and detaining persons with excessive force; in carelessly, recklessly and negligently, handcuffing, harassing, threatening, arresting and detaining plaintiff with excessive force; in depriving plaintiff of liberty; in failing to provide timely medical treatment to the plaintiff, despite his multiple requests for the same; in allowing its employees to utilize defective police methods and techniques in such a fashion as to afford them opportunity to arrest and handcuff persons with excessive force; in utilizing improper, defective and inadequate procedures; in failing to supervise and/or improperly supervising the aforesaid activities of their agents, servants and/or employees and the proper use of police methods and procedures; in being undermanned and understaffed; in employing incompetent, undertrained or untrained personnel; in not having sufficient staff to prevent the incident complained of; which was foreseeable, and all of which the defendants, their agents, servants and/or employees, in the exercise of due care and prudence, knew or could and should have known of; in permitting their agents, servants and/or employees, in the exercise of due care and prudence, knew or could and should have known of; in permitting their agents, servants and/or employees to unlawfully and improperly detain and arrest plaintiff; in creating a nuisance and a trap for the unaware; in carelessly and negligently failing to remedy or correct said condition; in carelessly and negligently failing to avoid the incident although the defendants, their agents, servants and/or employees had a reasonable opportunity to do so; in exposing the plaintiff to the existence of danger and peril

in view of the lack of necessary quality and standards and warnings, in total and wanton disregard of the safety and well-being of plaintiff; in violating those statutes, ordinances, rules and regulations in such cases made and provided, of which plaintiffs will ask this Court to take judicial notice at the time of the trial of this action; plaintiff was caused to suffer physical and psychological injuries and distress as a result of the wanton, reckless and grossly negligent acts of New York City Police Department, its officers agents, servants and/or employees including but not limited to two named defendants, "JOHN" GUZMAN and "JANE" RODRIGUEZ; in that they negligently and recklessly assaulted, battered, beat and handcuffed claimant with excessive force, under color of law and authority and in the scope of their employment without any probable cause to use such force in violation of 42 USC 1983 et. seq and claimant's Federal and State rights. The defendants, their agents, servants and/or employees failed to act prudently and reasonably in using excessive force in arresting and handcuffing the plaintiff; in failing to provide the plaintiff with proper and timely medical treatment despite having notice of the plaintiff's injuries; in causing the plaintiff's injuries; that defendant was negligent and grossly negligent, reckless, willful and wanton in hiring and retaining these two police officers who acted without right or authority to abuse claimant without any justifications, excuse or cause; and in otherwise being careless, reckless and negligent.

26. That by reason of the foregoing, the health and reputation of plaintiff, JOHN FUENTES, has been severely injured, plaintiff was brought into public scandal and disrepute, was rendered sick, sore, lame and disabled and has suffered and will continue to suffer great emotional trauma and harm.

27. This action falls within one or more of the exceptions set forth in CPLR 1602.

28. That by reason of the foregoing plaintiff has been damaged in a sum that exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" with the same force and effect as if the same were fully set forth herein at length.

30. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees were careless, reckless and negligent in failing to afford defendant "JOHN" GUZMAN and "JANE" RODRIGUEZ, the proper and special training necessary for the duties they could foreseeably be expected to perform in the course of employment in that defendants, "JOHN" GUZMAN and "JANE" RODRIGUEZ" were given no or inadequate legal training with regards to the definition and purpose of the law regarding arrest and that defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, negligently retained defendant, "JOHN" GUZMAN and "JANE" RODRIGUEZ, in their employment despite knowing actually and constructively that they had engaged in a course of consistently falsely arresting persons and/or using excessive force without cause or reason therefor and, despite said knowledge, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

failed to take reasonable steps to ascertain whether defendants, "JOHN" GUZMAN and "JANE" RODRIGUEZ, were emotionally capable of performing police duties and did not have a propensity toward arresting persons unlawfully and/or using excessive force.

31. That by reason of the foregoing plaintiff has been damaged in a sum that exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "31" with the same force and effect as if the same were fully set forth herein at length.

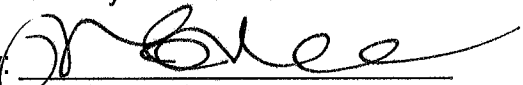
33. That as a result of the foregoing, plaintiff demands punitive and exemplary damages be assessed against defendants in the sum to be determined by the trier of fact.

34. That by reason of the foregoing plaintiff has been damaged in a sum that exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants, on all causes of action contained in the above Complaint in an amount to be determined by the trier of fact, together with the costs and disbursements of this action.

Dated: Rockville Centre, New York
July 1, 2013

Yours, etc.,
MARK E. WEINBERGER, P. C.
Attorneys for Plaintiff

By: 

MARC J. MUSMAN, ESQ.
MARK E. WEINBERGER, P.C.
50 Merrick Road
Rockville Centre, New York 11570
(516) 829-7270

VERIFICATION

STATE OF NEW YORK)
)ss:
COUNTY OF NASSAU)

JOHN FEUNTES, being duly sworn, deposes and says:

I am a Plaintiff in the action herein. I have read the annexed Summons and Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information.

Dated: Rockville Centre, New York
 July 1, 2014

John Fuentes

JOHN FUENTES

Sworn to before me this
1st Day of July, 2014

Donna M. Pirillo

NOTARY PUBLIC

DONNA M. PIRILLO
Notary Public, State of New York
No. 01PI4669275
Qualified in Nassau County 2018
Commission Expires May 31, 2010